

confer declaration under Section 2016.040. CCP §§ 2030.300(b) and 2031.310(b). The Declarations of Ryan Kuhn do not state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion, as required by section 2016.040.

Most importantly, Plaintiff's Motions were not filed *on receipt of a response* to their discovery, but rather prior to receiving the timely served discovery responses. This is improper. Plaintiff propounded the discovery at issue on March 24, 2026 by mail and email. Per CCP §1010.6, Defendant had 30 days, plus 2 court days (for service by email) to serve responses. Defendant therefore had until April 27, 2026 to timely serve responses. Plaintiff filed and served these two Motions to Compel Further Responses on April 27, 2026. Defendant served their responses to the discovery later that same day, on April 27, 2026. In other words, Plaintiff filed and served his Motions prematurely, in anticipation of inadequate responses. While the Court acknowledges Plaintiff's rationale concerning the discovery cutoff, the pending motion for protective order, and the impending trial date, the Code does not permit this. Therefore, the Motions are denied without prejudice. The Court declines to reach the merits of whether there is good cause for further production at this time. Considering the recently granted trial continuance, it appears the bulk of the dispute is largely moot. The Court requires the parties to meet and confer in person, by telephone, or by videoconference, to attempt to resolve discovery disputes informally as required by section 2016.040.

Both sides request monetary sanctions pursuant to CCP §§ 2030.290(c), 2031.300(c), and 2033.280(c). Sanctions are mandatory against the unsuccessful party, absent substantial justification or other circumstances that would make imposition of the sanctions unjust. Here, Plaintiff is the unsuccessful party. Plaintiff filed his motion to compel prematurely and without meeting and conferring in violation of the CCP. The Court does not find substantial justification or other circumstances that would make imposition of sanctions unjust. Defendant requests sanctions of \$6,980.50 (10.3 attorney hours at rates of \$515 and \$430 per hour) for the Motion on the Requests for Production, and \$4,539.50 (15.7 attorney hours at rates of \$515 and \$430 per hour) on the Motion for on the Special Interrogatories. The Court finds that 26 attorney hours on these two very similar discovery motions is unreasonable. Additionally, the hourly rates are higher than what is typically awarded by the Court in Shasta County, and no evidence that Defendant could not secure competent local counsel has been presented. Sanctions of \$3,200.00 total for both motions will be awarded, consisting of 8 attorney hours at rate of \$400 per hour.

Plaintiffs Motion to Compel Further Responses to Demand for Production of Documents is **DENIED**. Plaintiff's Motion to Compel Further Responses to Special Interrogatories is **DENIED**. Sanctions of \$3,200.00 total are awarded against Plaintiff. The Court will modify and execute the proposed orders.

CASTELLANOS, ET AL. VS. BEAR TRACKS HOLDINGS, LLC

CASE NUMBER: 25CV-0207058

Tentative Ruling on Motion for Preliminary Approval of Class Action Settlement:

Plaintiffs Genaro Castellanos and Alejandro Gandarilla Parra move for an Order granting preliminary approval of a proposed class action and Private Attorneys General Act (PAGA) settlement between Plaintiffs and Defendant Bear Tracks Holdings, LLC. The Motion is properly noticed and unopposed.

The law favors the settlement of lawsuits, particularly in complex litigation, where they save time and resources. *Neary v. Regents of the University of California* (1992) 3 Cal. 4th 273, 277-281 (superseded by statute on other grounds). However, courts cannot automatically and instantly approve a proposed settlement or dismiss a class action suit, even if the representative plaintiff and defendant have agreed on the terms of such settlement or dismissal. In a class action, the trial court has a duty to adequately protect the members of the class. *Bingham v. Obledo* (1983) 147 Cal. App. 3d 401, 406. Courts have long recognized that a class action may deprive an absent class member of the opportunity to independently press their claim, preclude a defendant from defending each individual claim to its fullest, and even deprive a litigant of a constitutional right. As such, a settlement or compromise of an entire class action, or a cause of action in a class action, or as to a party, requires the approval of the court after hearing. CRC 3.769(a). This takes two steps: (1) a preliminary review by the trial court, and (2) a final review after notice has been distributed to the class members.

The fundamental question for a preliminary review is whether the settlement is fair, adequate and reasonable. The purpose of this requirement is the protection of those class members, including the named plaintiffs, whose rights may not have been given due regard by the negotiating parties. *Dunk v. Ford Motor Co.* (1996) 48 Cal. App. 4th 1794, 1801. The trial court has broad discretion to determine whether the settlement is fair. It should consider relevant factors, such as: (1) the strength of plaintiff's case; (2) the risk, expense, complexity and likely duration of further litigation; (3) the risk of maintaining class action status through trial; (4) the amount offered in settlement; (5) the extent of discovery completed and the stage of the proceedings; (6) the experience and views of counsel; (7) the presence of a governmental participant; and (8) the reaction of the class members to the proposed settlement. The list of factors is not exhaustive and should be tailored to each case. *Id.*

The burden is on the proponent of the settlement to show that it is fair and reasonable. However, a presumption of fairness exists where: (1) the settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small. *Wershba v. Apple Computer, Inc.* (2001) 91 Cal. App. 4th 224, 225 (disapproved on other grounds by *Hernandez v. Restoration Hardware* (2018) 4 Cal. 5th 260).

Class Certification and Approval of Class Representative. A class action may be maintained "when the question is one of common or general interest, of many persons, or when the parties are numerous, and it is impracticable to bring them all before the court." CCP § 382. "The 'community of interest' requirement embodies three factors: (1) predominant common questions of law or fact; (2) class representatives with claims or defenses typical of the class; and (3) class representatives who can adequately represent the class." *Gattuso v. Harte-Hanks Shoppers, Inc.* (2007) 42 Cal. 4th 554, 575. Here, the settlement class is approximately 474 individuals employed by Bear Tracks Holdings, LLC in California and classified as non-exempt who worked for Bear Tracks Holdings, LLC during the Class Period, which is defined as January 10, 2021 until February 16, 2026, and who did not sign an arbitration clause. There appears to be a community of interest. There are common questions of law and fact because the proposed class members all worked for the same employer and were subject to the same employment practices and policies and same wage and hour laws. The class members have a representative who appears to be similarly situated as an employee of Defendant during the Class Period. Counsel has provided evidence that Plaintiff's claims are typical of the class. The Court certifies the class for the purpose of settlement and

confirms Genaro Castellanos and Alejandro Gandarilla Parra as the class representatives.

Approval of Class Counsel. Plaintiffs' counsel has demonstrated their experience and familiarity with class action cases, including employment and wage-and-hour disputes. Plaintiffs' counsel have provided evidence that they are well versed in class actions, particularly of this nature, and have the competence to be appointed as Class Counsel. The Court appoints Starpoint, LC and Southern California Attorneys, APC as class counsel for settlement purposes.

Approval of Settlement Administrator. A representative of proposed settlement administrator, ILYM Group, Inc., has provided evidence of the administrator's qualifications which the Court finds sufficient.

Fairness of Settlement and Plan of Allocation. Preliminary approval of a class action settlement constitutes a conditional finding that the settlement appears to be in the range of acceptable settlements. The Court has broad discretion to determine whether the settlement is fair. *Dunk v. Ford Motor Company, supra*, 48 Cal. App. 4th at 1801. As noted above, factors relevant to the court's determination include, but are not limited to, the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, and the experience and views of counsel. *Id.* There is a presumption of fairness where: (1) the settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; and (3) counsel is experienced in similar litigation. *Id.* at 1802.

The settlement here was the result of arm's-length negotiation through mediation with an experienced mediator following informal discovery. The declarations of counsel provide analysis of each claim that included the maximum overall exposure, discounts applied, and the realistic exposure. The proposed settlement is within the ballpark of the realistic exposure in this matter. Settling avoids the added costs of litigation to certify the class and to try the matter. It also avoids the possibility that putative class members will have no recovery at all. The Court finds the settlement to be fair, adequate, and reasonable.

Total Settlement Amount	\$573,000
Proposed Attorneys' Fees (up to 1/3)	-\$191,000
Litigation Costs and Expenses (up to)	-\$25,000.00
Settlement Administration Costs (up to)	-\$21,000
Proposed Class Representative Enhancement (both Plaintiffs)	-\$20,000
PAGA Claim Settlement Allocation	\$100,000
Payment to LWDA (65%)	(-\$65,000)
Payment to Class Members (35%)	(\$35,000)
Settlement to be Disbursed to Class Members	\$251,000

Attorney Fees and Costs: Counsel seeks up to \$191,000 in attorney fees and up to \$25,000 in litigation costs. Counsel has provided evidence of their expertise in the area, the risk of taking the case given that no payment is provided until settlement, and efforts put forth to prosecute the case. The Court will not approve the amount of attorney fees until the final approval hearing. The Court cannot award attorney fees without reviewing information about counsel's hourly rate and the time spent on the case. This is the law even if the parties have agreed to the fees. *Robbins v. Alibrandi*

(2005) 127 Cal. App. 4th 438, 450-451. At the time of the final approval hearing, the Court will review the evidence provided by Class Counsel. In addition to the hourly rate and hours spent on the case, Class Counsel should provide admissible evidence supporting the hourly fee requested including, if applicable, whether Class Counsel charges fee-paying clients the same rates. The Court will likewise not approve final costs until the final hearing as that is when Class Counsel can provide evidence of the specific costs incurred as part of this litigation.

Enhancement Award: The settlement provides for an enhancement award of \$10,000 to each of the named Plaintiffs as the Class Representatives. The Court will not approve the amount of the Plaintiff's enhancement award until the final approval hearing. With the final approval motion, a plaintiff should provide admissible evidence to support the request, e.g. the number of hours of service provided, the nature of the work performed, the risks faced in prosecuting this lawsuit, including any actual retaliation, and/or other evidence demonstrating the need for an incentive payment. See *Clark v. American Residential Services, LLC* (2009) 175 Cal. App. 4th 785, 804-807.

Settlement Administration Costs: Settlement administration costs have been requested in an amount up to \$21,000. Based on the size of the class and work required to administer this settlement, this amount appears to be higher than the Court typically approves for settlement administration. The estimate provided by ILYM Group, attached as Exhibit C to the Declaration of Lisa Mullins, provides that the estimate assumes 2,500 Class Members. Plaintiffs' briefing estimates fewer than 500 Class Members. The Court will require further clarification of this discrepancy before preliminarily approving the settlement administration costs. Additionally, the Court will not approve costs until the Final Approval Hearing and expects the Settlement Administrator to provide detailed billing records to support any requested costs.

PAGA: Under the Private Attorney General Act, private parties can assert claims for penalties that otherwise can be recovered only by the Labor and Workforce Development Agency ("LWDA"). Labor Code 2699(a). See also *Dunlap v. Superior Court* (2006) 142 Cal. App. 4th 330, 336. An employee who, through the PAGA, asserts a claim for civil penalties on behalf of the LWDA is acting as an agent of the LWDA. This is evident from the requirement that before initiating a PAGA claim, an employee must provide notice to the LWDA per Labor Code 2699.3(a), and the requirement that that 65% of any recovered civil penalties must be distributed to the LWDA, Labor Code 2699(i). In settling the LWDA's claims, Class Counsel are settling and releasing claims for penalties that belong to the People of the State of California acting through the LWDA. A settlement of LWDA claims should, therefore, provide a reasonable benefit to the state for the settlement of the released claims. The reasonable benefit may be based on the potential value of the recoverable civil penalties discounted by the risk and expense of litigation. In *Nordstrom Com' Cases* (2010) 186 Cal. App. 4th 576, 589, the Court of Appeal held that the Court can approve a settlement even when no money is allocated to the PAGA claims. The Declaration of Zachary Greenberg provides evidence that the LWDA was notified of the settlement prior to the motion being filed and how the PAGA portion of the settlement was determined. The Court notes that no objection was received from the LWDA. The Court finds that the \$65,000 PAGA portion of the settlement is reasonable and confers a substantial benefit on both the State of California and aggrieved employees.

Notice and Notice Procedure. Plaintiff requests approval of the Class Notice attached as Exhibit 1 to Exhibit A to the Declaration of Zachary Greenberg. If a class notice is to be effective,

"members of the class must receive the best notice practicable under the circumstances, including individual notice to all members who can be identified through reasonable effort." *Home Sav. & Loan Ass'n v. Sup. Ct.* (1975) 42 Cal. App. 3d 1006, 1012, citing Fed. R. Civ. P. 23(b)(2). The standard in California is whether the notice "has a reasonable chance of reaching a substantial percentage of class members." *Wershba v. Apple Computer* (2001) 91 Cal. App. 4th 224, 251. The Court notes the following issues with the Class Notice that will need to be corrected prior to mailing: 1) Under sections 7 and 9, remove reference to accessing documents on the Court's website. Shasta County Superior Court currently does not provide this option. Individuals may access public documents in person at the Court at any time during normal business hours; 2) Item 3.2.C. at page 24 of the proposed Class Notice indicates costs of up to \$21,000 for settlement administration. This figure must be revised as appropriate pending the outcome of today's hearing. Following the changes noted above, the Class Notice is approved for mailing in the manner described in the Settlement Agreement.

If Plaintiff appears at the hearing with satisfactory clarification and/or revision of the estimated settlement administration costs, the Court is otherwise prepared to grant the motion and set a date for the Final Approval Hearing. If Plaintiff fails to do so, the Court will continue the hearing and permit the filing of a supplemental declaration that addresses this issue.

IN RE: FURTADO

CASE NUMBER: 26CV-0210015

Tentative Ruling on Petition for Change of Name: Petitioner Michelle Furtado seeks to change the name of her minor son. Proof of publication is on file. However, when a petition to change the name of a minor is brought by one parent only, the nonconsenting parent must be personally served with the notice of hearing or order to show cause at least 30 days before the hearing date. See CCP § 1277(a)(4). In the alternative to personal service, the Court may order notice be given in another manner the Court determines is reasonably calculated to give actual notice to the non-consenting parent. CCP § 1277(a)(4). No proof of service is on file. This matter is continued to **Monday, July 20, 2026, at 8:30 a.m. in Department 64.** Petitioner shall file an Amended Order to Show Cause ("Amended OSC") for the continued hearing date. The Amended OSC must be personally served on the father at least 30 days before the continued hearing date. No appearance is necessary on today's calendar.

IN RE: HOLMES

CASE NUMBER: 26CV-0210010

Due to recusal by Judge Birss, this matter will be heard in Department 63 today, before Judge Hanna. The tentative ruling for this matter is posted under Department 63. All parties are directed to appear in Department 63.

JONES, ET AL. VS. PACIFIC GAS & ELECTRIC, ET AL.

CASE NUMBER: 25CV-0208179

Tentative Ruling on Order to Show Cause Re Sanctions: An Order to Show Cause Re: Sanctions ("OSC") issued on April 8, 2026, to Plaintiff and counsel for failure timely serve all defendants as required by CRC 3.110(b) and failure to timely seek entry of default as required by CRC 3.110(g). No response to the OSC has been filed. Sanctions will be imposed in the amount of \$250. The clerk is instructed to prepare a separate Order of Sanctions. This matter is set for review regarding status of service and status of default on **Monday, June 29, 2026, at 9:00 a.m. in Department 64.** Plaintiff is ordered to file a status statement at least five court days prior to the review hearing.